

The Disaster Management (National Institute Of Disaster Management) Rules, 2006

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The Disaster Management (National Institute Of Disaster Management) Rules, 2006

UNION OF INDIA

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The Disaster Management (National Institute Of Disaster Management) Rules, 2006

Rule THE-DISASTER-MANAGEMENT-NATIONAL-INSTITUTE-OF-DISASTER-MANAGEMENT-RULES-2006 of 2006

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The Disaster Management (National Institute Of Disaster Management) Rules, 2006

Published vide G.S.R. 680(E), dated 30.10.2006 and published in the Gazette of India, Extraordinary, Extraordinary, Part II, Section 3(i), dated 30.10.2006.

7.

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In exercise of the powers conferred by clause (e) of sub-section (2) read with sub-section (1) of section 75 of the Disaster Management Act, 2005 (53 of 2005), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Disaster Management (National Institute of Disaster

Management) Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-(1) In these rules, unless the context otherwise requires,-

(a)

"Act" means the Disaster Management Act, 2005 (53 of 2005);

(b)

"Chairperson" means the Chairperson of the governing body;

(c)

"Executive Director" means the Executive Director of the institute appointed by the Central Government;

(d)

"governing body" means the governing body of the institute;

(e)

"institute" means the National Institute of Disaster Management;

(f)

"President" means the President of the institute;

(g)

"Secretary" means the Secretary of the institute and the governing body;

(h)

"section" means a section of the Act;

(i)

"Vice-Chairperson" means the Vice-Chairperson of the governing body of the institute;

(j)

"Vice-President" means the Vice-President of the institute.

(2)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Composition of the institute .-(1) The institute shall consist of the following members, namely:-

(i)

the Minister in charge of the Ministry or Department of the Central Government having administrative control of disaster management, who shall be the President, ex officio ;

(ii)

the Vice-Chairperson of the National Authority who shall be the Vice-President, ex officio ;

(iii)

one member of the National Authority;

(iv)

Chairperson of the National Executive Committee, that is, the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of disaster management, ex officio ;

(v)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of expenditure, ex officio ;

(vi)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of agriculture, ex officio ;

(vii)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of External Affairs, ex officio ;

(viii)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having

administrative control of health, ex officio ;

(ix)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of science and technology, ex officio ;

(x)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of atomic energy, ex officio ;

(xi)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of space, ex officio ;

(xii)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of ocean development, ex officio ;

(xiii)

the Secretary or Special Secretary or Additional Secretary or Joint Secretary, as the case may be, to the Government of India dealing with disaster management in the Ministry or Department of the Central Government having administrative control of disaster management, ex officio ;

(xiv)

the Additional Secretary and Financial Advisor or Joint Secretary and Financial Advisor, as the case may be, to the Government of India dealing with finance of the Ministry or Department of the Central Government having administrative control of disaster management, ex officio ;

(xv)

The Secretary or Additional Secretary, as the case may be, of the National Disaster Management Authority, ex officio ;

(xvi)

the Director-General of the National Disaster Response Force, ex officio ;

(xvii)

the Deputy Chief of Integrated Defence Staff, Doctrine Organisation and Training (DOT), Head Quarters Integrated Defence Staff, Ministry of Defence, ex officio ;

(xviii)

two Secretaries of State Governments in charge of disaster management;

(xix)

one Vice-Chancellor from the universities;

(xx)

the Director, Lal Bahadur Shastri National Academy of Administration, Mussorrie;

(xxi)

the Director, Sardar Vallabha Bhai Patel National Police Academy, Hyderabad;

(xxii)

the Director General, India Meteorological Department, ex officio ;

(xxiii)

two Directors, one each, from any Indian Institute of Management and any Indian Institute of Technology;

(xxiv)

the Chairman of the Central Water Commission, ex officio ;

(xxv)

the Director of Indian Institute of Public Administration, ex officio ;

(xxvi)

the Director General of Indian Council of Agriculture Research, ex officio ;

(xxvii)

one Director General from the Administrative Training Institutes or State Institutes of Rural Development;

(xxviii)

the Director General of Indian Council of Medical Research, ex officio ;

(xxix)

- two eminent persons in the field of disaster management, public administration, information technology, medicine, etc.;
- (xxx)
- two experts, one each from banking and insurance sector;
- (xxxi)
- two presidents or heads, by whatever name called, from the industry associations or federations of all-India-level which in the opinion of the Central Government are capable of representing the industry, trade or commerce;
- (xxxii)
- two presidents or heads, by whatever name called, from non-governmental organisations which in the opinion of the Central Government are active and effective in the disaster management activities, or are capable of representing such activities;
- (xxxiii)
- one head from science and technology institutions;
- (xxxiv)
- one head from medical or health institutions;
- (xxxv)
- one professor of the National Institute of Disaster Management;
- (xxxvi)
- the Executive Director of the Institute, ex officio .
- (2)
- The Central Government shall nominate the members of the institute, other than the ex officio members in such manner as it may consider appropriate.
- (3)
- The Vice-Chairperson of the National Authority shall nominate the member of the National Authority for the institute.
- (4)
- Save as otherwise provided in this sub-rule, the term of office of-
- (a)
- an ex officio member of the institute shall continue so long as he holds the office by virtue of which he is such a member; and
- (b)
- a nominated member of the institute shall be two years from the date of his nomination:
- Provided that a member other than an ex officio member of the institute may resign from the office of such member, by writing under his hand addressed to the Central Government, but he shall continue in office until his resignation is accepted by the Government.
- 4.
- Filling up of vacancies .-All vacancies by reason of resignation, death or otherwise among members (other than ex officio members) of the institute shall be filled as soon as may be after the occurrence of the vacancy by a fresh nomination.
- 5.
- Meetings of the institute .-The institute shall hold its first meeting at such time and place as may be appointed by the Central Government and observe such rules of procedure in regard to the transaction of business at the first meeting as may be laid down by that Government and thereafter the institute shall meet at such times and places and observe such rules of procedure in regard to the transaction of business at its meetings as may be determined by regulations.
- 6.
- Governing body of the institute .-(1) The governing body of the institute shall consist of the following members, namely:-
- (i)
- The Vice-Chairperson of the National Authority who shall be the Chairperson, ex officio ;
- (ii)
- the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of disaster management, who shall be the Vice-Chairperson, ex officio ;
- (iii)
- the Secretary or Special Secretary or Additional Secretary or Joint Secretary, as the case may be, to the Government of

India dealing with disaster management in the Ministry or Department of the Central Government having administrative control of disaster management, ex officio ;

(iv)

the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of expenditure, ex officio ;

(v)

the Secretary or Additional Secretary, as the case may be, of the National Authority, ex officio ;

(vi)

the Additional Secretary and Financial Advisor or Joint Secretary and Financial Advisor, as the case may be, to the Government of India dealing with finance of the Ministry or Department of the Central Government having administrative control of disaster management, ex officio ;

(vii)

one member from amongst the members of the institute representing the State Governments;

(viii)

one member of the institute representing the university;

(ix)

two members of the institute representing the Indian Institute of Technology and the Indian Institute of Management;

(x)

one member of the institute representing a science and technology institution;

(xi)

two members from amongst the members of the institute representing the Department of Space, the Department of Atomic Energy, the Department of Science and Technology, the Central Water Commission and the Indian Council of Agriculture Research; and

(xii)

the Executive Director of the Institute, ex officio.

(2)

The governing body shall be the executive committee of the institute and shall exercise such powers and perform such functions as the institute may, by regulations made in this behalf, confer or impose upon it.

(3)

The procedure to be followed in the exercise of its powers and performance of its functions by the governing body, and the term of office of, and the manner of filling up vacancies, among the members of the governing body, shall be such as may be made by regulations.

7. Executive Director of the institute .-(1) There shall be an Executive Director of the institute who shall be appointed by the Central Government.

(2)

The Executive Director of the institute shall act as the Secretary to the institute as well as the governing body of the institute.

8.

Powers and functions of the Executive Director .-The Executive Director of the institute shall exercise such powers and perform such functions as may be made by regulations.

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